

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
DAVID REYES,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. MICHAEL PABON,
Tax Id. No. 961986, Individually and in his Official
Capacity, and POLICE OFFICERS "JOHN DOE" #1-10,
Individually and in their Official Capacity (the name John
Doe being fictitious, as the true names are presently
unknown).

Defendants.
-----X**SUMMONS**

Jury Trial Demanded

Plaintiff designates Bronx
County as the place of trial.The basis of venue is:
CPLR § 504(3)**To the above named Defendants:**

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
September 5, 2019

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TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
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P.O. MICHAEL PABON, Tax ID# 961986, 52 Precinct 3450 Kingsbridge Ave Bronx, NY
10463

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Plaintiff DAVID REYES, by his attorney, Katherine E. Smith, Esq., complaining of the
defendants, respectfully allege as follows:

FACTS

1. Plaintiff DAVID REYES is a Hispanic male and has been at all relevant times a
resident of Bronx County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly
organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police
Department, duly authorized public authorities and/or police departments, authorized to perform
all functions of a police department as per the applicable sections of the New York State

Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, P.O. P.O. MICHAEL PABON, Tax Id. No. 961986 and POLICE OFFICERS "JOHN DOE" #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about January 8, 2018, at approximately 6:38 p.m., in the County of Bronx, City, and State of New York, plaintiff DAVID REYES was lawfully present in the vicinity of E. 194th St. and Valentine Ave.

9. At the aforementioned time and place, several NYPD officers including defendants PABON and/or "JOHN DOE" #1-10 (the "Defendant Officer's") – unlawfully stopped Plaintiff.

10. The Defendant Officers violently and brutally attack Plaintiff. This assault lasted for several minutes.

11. At the time of this incident, plaintiff did not, and had not, engaged in any behavior that would justify attacking him.

12. Further, at no time on January 8, 2018, was the force used against plaintiff by defendants PABON and/or "JOHN DOE" #1-10 reasonable.

13. As a result of this attack, plaintiff suffered serious, severe, and permanent injuries throughout his body, including *inter alia*, a displaced and comminuted nasal fracture, head trauma, orbital ecchymosis with conjunctival hemorrhage, sclera, hematoma to orbital region, irregularity at the tibial plateau, suprapatellar effusion, bleeding, swelling, bruises, abrasions, and severe pain, which required medical treatment.

14. Moreover, the Defendant Officers proceeded to arrest Plaintiff despite the fact that they lacked probable cause to believe that he had committed any crimes or offenses.

15. Defendants PABON and/or "JOHN DOE" #1-10 placed plaintiff under arrest by handcuffing his arms tightly behind his back and then searched plaintiff's person and effects.

16. Thereafter, plaintiff was transported to a nearby police precinct where he was processed, detained in a holding cell for several hours, and charged with crimes by defendants PABON and/or "JOHN DOE" #1-10. Specifically, plaintiff was charged with Forcible Touching and Resisting Arrest.

17. After being detained at the aforementioned precinct, plaintiff was transported to Central Booking where he was processed and further detained.

18. Subsequently, plaintiff was transported to a nearby hospital for treatment related to the above-mentioned assault and injuries that resulted therefrom.

19. In connection with plaintiffs' arrest, defendants PABON and/or "JOHN DOE" #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the Bronx County District Attorney's Office. Thereafter, defendants PABON and/or "JOHN DOE" #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiffs' arrests. Specifically, defendants PABON and/or "JOHN DOE" #1-10 falsely stated, that plaintiff resisted arrest by flailing his arms and twisting his body away from defendant PABON while defendant PABON was attempting to officiate an arrest upon plaintiff.

20. Plaintiff spent an extended period of time in custody and made multiple court appearances over the course of approximately one (1) year, before all charges against him were dismissed in their entirety on or about January 17, 2019.

21. As a result of the foregoing, plaintiff sustained, *inter alia*, loss of liberty, physical and emotional injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of their constitutional rights.

CLAIM ONE
Under State and Federal Law
UNLAWFUL STOP, SEARCH, AND SEIZURE

22. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

23. As a result of the aforesaid conduct by defendants, PLAINTIFF's person and possessions were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

CLAIM TWO
Under State and Federal Law
FALSE ARREST

24. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

25. Defendant police officers arrested PLAINTIFF in the absence of probable cause and without a valid warrant.

26. As a result of the aforesaid conduct by defendants, PLAINTIFF was subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the PLAINTIFF's rights.

CLAIM THREE
Under State and Federal Law
MALICIOUS ABUSE OF PROCESS

27. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

28. The individual defendants issued legal process to place PLAINTIFF under arrest.

29. The Municipal Defendants arrested PLAINTIFF in order to obtain collateral objectives outside the legitimate ends of the legal process.

30. The Municipal Defendants acted with intent to do harm to PLAINTIFF without excuse or justification.

31. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained, *inter alia*, loss of liberty, loss of earnings, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, in addition to the damages hereinbefore alleged.

CLAIM FOUR
Under State and Federal Law
MALICIOUS PROSECUTION

32. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

33. By their conduct, as described herein, defendants are liable to PLAINTIFF for having committed malicious prosecution under the laws of the State of New York.

34. Defendants maliciously commenced criminal proceeding against PLAINTIFF, falsely accusing PLAINTIFF of violating the law.

35. Defendants falsely and without probable cause charged PLAINTIFF with violations of the laws of the State of New York.

36. The commencement and continuation of the criminal proceedings against PLAINTIFF was malicious and without probable cause.

37. All charges were terminated in PLAINTIFF's favor.

38. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of PLAINTIFF. Defendant City of New York, as an employer of the

individual defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

39. As a direct and proximate result of the misconduct and abuse of authority stated above, PLAINTIFF sustained the damages alleged herein.

CLAIM FIVE
Under Federal Law
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

40. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

41. Defendants created false evidence against PLAINTIFF.

42. Defendants forwarded false evidence and false information to prosecutors in the District Attorney's office.

43. Defendants misled the prosecutors by creating false evidence against PLAINTIFF and thereafter providing false testimony throughout the criminal proceedings.

44. In creating false evidence against PLAINTIFF, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated PLAINTIFF's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

45. As a result of the foregoing, PLAINTIFF's liberty was restricted for an extended period of time, was put in fear for PLAINTIFF'S safety, and was humiliated and subjected to handcuffing and other physical restraints without probable cause.

CLAIM SIX
Under State and Federal Law
UNREASONABLE FORCE

46. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

47. The defendants violated the Fourth and Fourteenth Amendments and New York State Law because they used unreasonable, excessive, and unjustified force on PLAINTIFF.

48. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM SEVEN
Under Federal Law
FAILURE TO INTERVENE

49. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

50. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

51. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

52. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM EIGHT
Under State Law
ASSAULT and BATTERY

53. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

54. Defendants' aforementioned actions placed PLAINTIFF in apprehension of imminent harmful and offensive bodily contact.

55. Defendant police officers touched PLAINTIFF in a harmful and offensive manner.

56. Defendant police officers did so without privilege or consent from PLAINTIFF.

57. As a result of defendants' conduct, PLAINTIFF has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

CLAIM NINE
Under Federal Law
DEPRIVATION OF FEDERAL RIGHTS

42. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

43. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

44. All of the aforementioned acts deprived PLAINTIFF of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

45. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

46. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

47. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

CLAIM TEN
Under Federal Law
DELIBERATE INDIFFERENCE TO SAFETY/MEDICAL NEEDS

48. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

49. The individual defendants were aware of a risk to PLAINTIFF's safety and a need for medical care and failed to act in deliberate indifference to PLAINTIFF's needs.

50. Accordingly, defendants violated the fourteenth amendment because they acted with deliberate indifference to PLAINTIFF's medical needs and safety.

51. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM ELEVEN
Under State Law
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

52. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

53. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

54. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

55. Due to the negligence of the defendants as set forth above, PLAINTIFF suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

CLAIM TWELVE
Under Federal Law
MUNICIPAL LIABILITY

56. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

57. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

58. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. fabricating evidence in connection with search warrants in order to effectuate otherwise illegal searches and seizures, and,
- v. fabricating evidence in connection with search warrants in order to cover up police misconduct.

59. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the PLAINTIFF.

60. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the PLAINTIFF as alleged herein.

61. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the PLAINTIFF as alleged herein.

62. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFF's constitutional rights.

63. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the PLAINTIFF's constitutional rights.

64. The acts complained of deprived the PLAINTIFF of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, PLAINTIFF respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York
September 5, 2019



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